CERTIFICATE OF INCORPORATION
OF
NYC PHILOSOPHY & PSYCHOLOGY READERS COMMUNITY, INC.

Under Section 402 of the Not-for-Profit Corporation Law

ATTORNEY NOTE / FLAG: *Proposed name is a placeholder. Before filing, run a DOS name-availability inquiry ($5/name) or file an Application for Reservation of Name ($10, 60 days; N-PCL §303). The DOS online entity database is NOT a name-availability determination. Consider also whether DOS will accept '&' (it generally does) and check USPTO/marks for 'NYC' and the Meetup group name. N-PCL §301(a)(1) requires a corporate indicator ('Inc.'); none of the §301 exemptions apply here. 'Psychology' is not on the DOS restricted-words list for N-PCL names, and NYSED states Commissioner's consent is not needed for an N-PCL name except 'college', 'university', 'museum' or 'arboretum'.*

The undersigned incorporator, being a natural person of at least eighteen years of age, hereby certifies:

FIRST: The name of the corporation is NYC Philosophy & Psychology Readers Community, Inc. (the "Corporation").

SECOND: The Corporation is a corporation as defined in subparagraph (5) of paragraph (a) of Section 102 of the Not-for-Profit Corporation Law (the "N-PCL").

THIRD: The Corporation is organized and shall be operated exclusively for charitable and educational purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code of 1986, as amended (the "Code") (or the corresponding provision of any future United States internal revenue law). Within those purposes, the specific purpose of the Corporation is to advance public education and understanding in philosophy and psychology, including by organizing and conducting free or low-cost public reading and discussion groups, conferences, lectures, seminars, non-credit courses and study programs, and by creating and distributing educational content, in person in the City of New York and elsewhere and online. In furtherance of these purposes the Corporation shall have all of the powers enumerated in Section 202 of the N-PCL, subject to the limitations of this Certificate.

Nothing herein shall authorize the Corporation, directly or indirectly, to (a) operate a school, college, university or other entity providing postsecondary education, a library, a museum or a historical society, or grant degrees or academic credit; or (b) engage in the practice of psychology, psychotherapy, mental health counseling, or any other profession licensed under Title VIII of the New York Education Law, provide clinical or therapeutic services, or hold itself out as offering such services.

ATTORNEY NOTE / FLAG: *Clause (a) keeps the purposes outside N-PCL §404(d)/Education Law §216 consent territory (consent needed only to operate a school, postsecondary entity, library, museum or historical society). Because the Corporation has educational purposes, §404(d) still requires sending a CERTIFIED copy of the filed certificate to the Commissioner of Education within 30 business days after DOS confirms filing. Clause (b) is recommended given the word 'Psychology' and the incorporator's private therapy practice (Education Law Art. 153 restricts practice and title of 'psychologist').*

FOURTH: The Corporation is a charitable corporation under Section 201 of the N-PCL.

FIFTH: The Corporation is not formed to engage in any activity or for any purpose requiring consent or approval of any state official, department, board, agency or other body. No such consent or approval is required.

SIXTH: The office of the Corporation is to be located in the County of [New York], State of New York.

ATTORNEY NOTE / FLAG: *Confirm county (New York County = Manhattan). A home address is not required in the certificate; only the county.*

SEVENTH: The names and addresses of the initial directors of the Corporation (not fewer than three) are:

Name	**Address**
Ryan Bohman	[Address]
[Director 2]	[Address]
[Director 3]	[Address]

EIGHTH: The Secretary of State is designated as agent of the Corporation upon whom process against the Corporation may be served. The post office address to which the Secretary of State shall mail a copy of any process against the Corporation served upon the Secretary of State is: [Name / c/o], [Street Address], [City], New York [ZIP].

NINTH (Members): The Corporation shall have one class of members, the number, qualifications, rights and manner of admission of which shall be as set forth in the By-laws. The initial sole member is Ryan Bohman. In addition to any approval of members required by the N-PCL, and as permitted by Section 402(c) of the N-PCL, none of the following actions shall be effective without the prior approval of the member(s): (a) any amendment of this Certificate of Incorporation; (b) the adoption, amendment or repeal of the By-laws; (c) any change in the name or the purposes (mission) of the Corporation; (d) any plan of merger or consolidation; (e) any plan of dissolution or the dissolution of the Corporation; (f) any sale, lease, exchange or other disposition of all or substantially all of the assets of the Corporation; and (g) [the adoption of the Corporation's annual operating budget].

ATTORNEY NOTE / FLAG: *Items (a), (d), (e) and (f) already require member approval under the N-PCL (§§802, 903, 1002, 510). Item (g), budget approval, is a 'reserved power' that limits the board's statutory management authority under N-PCL §701; it is commonly used by NY 'sole member' parent structures, but counsel should confirm it is permissible for this corporation and that the board's fiduciary authority is not impermissibly divested. If doubtful, convert (g) to a consultation right in the By-laws only. Directors remain fiduciaries; the member's reserved powers do not relieve the board of its duties. Any sale of all or substantially all assets of a charitable corporation also needs Attorney General approval or court approval (N-PCL §§510-511).*

TENTH: No part of the net earnings of the Corporation shall inure to the benefit of, or be distributable to, its members, directors, officers or other private persons, except that the Corporation shall be authorized and empowered to pay reasonable compensation for services rendered and to make payments and distributions in furtherance of the purposes set forth in Article THIRD. No substantial part of the activities of the Corporation shall be the carrying on of propaganda, or otherwise attempting to influence

legislation, and the Corporation shall not participate in, or intervene in (including the publishing or distribution of statements), any political campaign on behalf of or in opposition to any candidate for public office. Notwithstanding any other provision of this Certificate, the Corporation shall not carry on any other activities not permitted to be carried on (a) by a corporation exempt from federal income tax under Section 501(c)(3) of the Code, or (b) by a corporation contributions to which are deductible under Section 170(c)(2) of the Code.

ELEVENTH (Dissolution): Upon the dissolution of the Corporation, after paying or making provision for the payment of all of its liabilities, all remaining assets shall be distributed to one or more organizations then described in Section 501(c)(3) of the Code (and Section 170(c)(2)), or to a federal, state or local government for a public purpose, as shall be selected in a plan of dissolution approved by the member(s) and the Board of Directors, subject to an order of a Justice of the Supreme Court of the State of New York or approval of the Attorney General as required by the N-PCL. Any assets not so disposed of shall be disposed of by a court of competent jurisdiction of the county in which the principal office of the Corporation is then located, exclusively for such purposes or to such organization or organizations as the court shall determine, which are organized and operated exclusively for such purposes.

TWELFTH (Limitation of liability): To the fullest extent permitted by Section 402(b) of the N-PCL, no director of the Corporation shall be personally liable to the Corporation or its members for damages for any breach of duty in such capacity, except for liability that may not be eliminated under that section. This Article does not limit any statutory protection available under N-PCL §720-a.

IN WITNESS WHEREOF, this Certificate has been subscribed by the incorporator on [date], who affirms the statements made herein as true under the penalties of perjury.

_____

Ryan Bohman, Incorporator

[Address]

Filer's name and mailing address (for DOS return of filing receipt):

Ryan Bohman, [Address], [City], NY [ZIP]

ATTORNEY NOTE / FLAG: *This follows the structure of DOS Form 1511-f (Certificate of Incorporation, Domestic Not-for-Profit) and adds the IRS-required 501(c)(3) purpose limitation and dissolution clause (Form 1023-EZ Part II, lines 5-7; Pub. 557). DOS accepts any form complying with §402. Attach the DOS name availability response (recommended, not required).*

BY-LAWS
OF
NYC PHILOSOPHY & PSYCHOLOGY READERS COMMUNITY, INC.

A New York Not-for-Profit (Charitable) Corporation — adopted [date]

ARTICLE I — NAME, OFFICE, PURPOSES

1.1 Name. The name of the corporation is NYC Philosophy & Psychology Readers Community, Inc. (the "Corporation"), also known as NYCPPRC.

1.2 Office. The principal office shall be in the County stated in the Certificate of Incorporation. The Corporation may operate online and at venues in and outside New York City.

1.3 Purposes. The purposes of the Corporation are as set forth in its Certificate of Incorporation (the "Certificate"). The Corporation is a charitable corporation under N-PCL §201 and shall be operated exclusively for purposes described in Section 501(c)(3) of the Internal Revenue Code (the "Code"). In case of conflict, the N-PCL, then the Certificate, then these By-laws control.

ARTICLE II — MEMBER

2.1 Sole Member. The Corporation shall have one class of members consisting of one member (the "Member"). The initial Member is Ryan Bohman. Membership is personal, carries no economic interest, and may not be sold. No dividend or distribution shall be paid to the Member (N-PCL §515).

2.2 Succession. The Member may designate in a signed writing delivered to the Secretary one or more successor Members (individuals or a 501(c)(3) organization) to become the Member upon the Member's death, incapacity (as certified by a physician or court) or written resignation. If no designated successor is able and willing to serve, the Board of Directors shall promptly either (a) admit a successor Member by a two-thirds vote of the directors then in office, or (b) amend the Certificate and By-laws to make the Corporation a corporation without members, and in the interim the Board shall exercise the Member's rights to the extent permitted by law.

ATTORNEY NOTE / FLAG: *Succession is essential: with a single individual member, death or incapacity otherwise leaves no one able to elect directors or approve reserved matters. Counsel should confirm the mechanism (N-PCL §§601, 801-803).*

2.3 Rights of the Member. The Member shall have the right to: (a) elect the directors (N-PCL §703); (b) remove any director at any time, with or without cause (N-PCL §706, the Certificate and these By-laws so providing); (c) fill vacancies on the Board; and (d) approve the following actions, none of which shall be effective without the Member's prior written approval ("Reserved Powers"): (i) amendment of the Certificate; (ii) adoption, amendment or repeal of these By-laws; (iii) any change of the Corporation's name or mission/purposes; (iv) any merger or consolidation; (v) dissolution; (vi) any sale, lease, exchange

or other disposition of all or substantially all assets; and (vii) [approval of the annual operating budget adopted by the Board].

ATTORNEY NOTE / FLAG: *Budget approval (vii) is flagged: it overlaps the Board's statutory duty to manage the Corporation (N-PCL §701) and the Board's fiduciary duties. Alternative wording: 'The Board shall consult with the Member before adopting the annual budget.' Also: when the Member is also a director and the chair, sole-member control does not by itself defeat 501(c)(3) or public-charity status, but it heightens IRS and NY Attorney General scrutiny for inurement/private benefit; a majority-independent board (N-PCL §102(a)(21) definition of 'independent director') is strongly recommended.*

2.4 Meetings and Action of the Member. An annual meeting of the Member shall be held each year (N-PCL §603) at which directors are elected as needed and the Board presents the annual report required by N-PCL §519. The Member may act without a meeting by written consent (including electronic transmission) signed by the Member (N-PCL §614), which shall be filed with the minutes.

2.5 Non-Members. Meetup group members, attendees, donors, volunteers and members of the Organizer Council are not “members” of the Corporation within the meaning of the N-PCL, have no voting rights, and may be referred to as “community participants.”

ARTICLE III — BOARD OF DIRECTORS

3.1 Powers. Subject to the N-PCL, the Certificate and the Reserved Powers, the Corporation shall be managed by its Board of Directors (the “Board”) (N-PCL §701).

3.2 Number and Qualifications. The Board shall consist of not fewer than three (3) nor more than [nine (9)] directors, the exact number to be fixed by the Member from time to time (N-PCL §702). Each director shall be at least eighteen years of age. [It is the policy of the Corporation that a majority of directors be independent directors as defined in N-PCL §102(a)(21).] No reduction in number shall shorten the term of an incumbent director.

3.3 Initial Directors; Election; Terms. The initial directors are those named in the Certificate: Ryan Bohman, [Director 2] and [Director 3]. Thereafter directors shall be elected by the Member at the annual meeting for terms of [two (2)] years, staggered so that approximately one-half of the terms expire each year; the initial term of [Director 3] shall be one year. Each director holds office until a successor is elected and qualified, or until earlier death, resignation or removal. [There are no term limits.] / [No director may serve more than three consecutive full terms.]

3.4 Removal; Resignation; Vacancies. Any director may be removed at any time, with or without cause, by the Member. A director may resign by written notice (including email) to the Chair or Secretary. Vacancies and newly created directorships shall be filled by the Member; if the Member has not acted within sixty days, the remaining directors may fill the vacancy by majority vote, subject to later removal by the Member.

3.5 Meetings. The Board shall hold an annual meeting and at least [three] additional regular meetings each year at times and places (including virtual) fixed by the Board. Special meetings may be called by the Chair, the President, or any two directors. Notice of special meetings stating the time, place or means

of remote participation shall be given at least [three (3)] days in advance by email or other electronic means; notice may be waived in writing or by attendance without protest (N-PCL §711).

3.6 Remote Participation. Any one or more directors may participate in a meeting by conference telephone, video conference or similar communications equipment, provided all persons participating can communicate with each other at the same time and each director can participate in all matters before the Board, including proposing, objecting to and voting on actions. Such participation constitutes presence in person (N-PCL §708(c)).

3.7 Quorum. A majority of the entire Board (the total number of directors the Corporation would have if there were no vacancies) shall constitute a quorum (N-PCL §707).

3.8 Voting. Except as otherwise required by law, the Certificate or these By-laws, the vote of a majority of the directors present at the time of a vote, if a quorum is present, shall be the act of the Board (N-PCL §708(d)). Each director has one vote; proxy voting by directors is not permitted.

3.9 Tie Votes. [ALTERNATIVE A: In the event of a tie vote on any matter other than one in which the Chair is an interested or related party, the Chair shall have a second, deciding vote.] [ALTERNATIVE B: A motion that receives a tie vote fails; the Chair may re-present the matter at the next meeting, and any director may request the Member's non-binding view.]

ATTORNEY NOTE / FLAG: *Chair tie-break: N-PCL §708(d) makes the act of the Board 'the vote of a majority of the directors present.' A second 'casting' vote for the Chair is not expressly authorized by the N-PCL and could be challenged as giving one director two votes; counsel should confirm. Alternative B (tie fails) is the conservative default. The Chair can never break a tie on a related party transaction or his own compensation (N-PCL §715(h); COI Policy).*

3.10 Action Without a Meeting. Any action required or permitted to be taken by the Board or a committee may be taken without a meeting if all members of the Board or committee consent in writing or by electronic transmission to the adoption of a resolution authorizing the action. The resolution and the consents shall be filed with the minutes (N-PCL §708(b)).

3.11 Interim Executive Action Between Meetings. Between meetings of the Board, the Chair (or, if the Chair is unavailable or interested, the President or another officer designated by the Board) may take actions that are (a) in the ordinary course and within the Board-approved budget, or (b) reasonably necessary to address an urgent matter where delay would harm the Corporation, provided that any single commitment does not exceed $[500] and aggregate interim commitments do not exceed $[2,000] between meetings. Each such action shall be reported in writing to all directors within [five] days and submitted for ratification at the next Board meeting or by unanimous written consent. Interim action may NOT be used for: any matter requiring Member approval; any related party transaction or compensation of any director, officer or key person; any matter that N-PCL §712(a) reserves to the full Board; borrowing; real property; or any contract with a term over one year. If the Board declines to ratify, the action shall be unwound to the extent practicable.

ATTORNEY NOTE / FLAG: *A formal Executive Committee under N-PCL §712 requires at least three directors, which is impractical on a three-person board, so this section uses a limited, capped officer*

authority with ratification instead. Ratification is not a safe harbor for related party transactions (see N-PCL §715(j)), which is why those are excluded.

3.12 Compensation. Directors shall serve without compensation for their service as directors but may be reimbursed for reasonable, documented expenses. A director may be compensated for other services actually rendered (for example, as an event host) only under a Board-approved policy and in compliance with N-PCL §715 and the Conflict of Interest Policy, with the interested director not participating.

ARTICLE IV — OFFICERS

4.1 Officers. The officers shall be a Chair of the Board, a President, a Secretary and a Treasurer, and such other officers (e.g., Vice President, Events Coordinator) as the Board may appoint. Officers are elected by the Board at its annual meeting for one-year terms (N-PCL §713). Any two or more offices may be held by the same person, except the offices of President and Secretary (N-PCL §713(b)). [Recommended: the President and Treasurer should also be different persons; the Charities Bureau registration requires signatures of the President or other authorized officer and of the Treasurer/CFO.]

4.2 Chair. The Chair presides at Board meetings and the annual meeting and performs duties assigned by the Board. No employee of the Corporation may serve as Chair (N-PCL §713(f)) except as that section permits.

ATTORNEY NOTE / FLAG: *Ryan as an independent-contractor host is not an 'employee,' but if the Corporation ever employs him (e.g., as executive director), §713(f) bars him from being Chair unless two-thirds of the entire Board approves and contemporaneously documents the basis. He also would not be an 'independent director.'*

4.3 President. The President is the chief executive officer, supervises the programs and affairs of the Corporation subject to the Board, and may sign contracts approved by the Board or within delegated authority.

4.4 Secretary. The Secretary keeps minutes of Member and Board meetings, gives notices, maintains the corporate records required by N-PCL §621, and collects the annual conflict-of-interest disclosure statements.

4.5 Treasurer. The Treasurer oversees funds, books of account, banking, donation tracking (including per-event donation attribution under the Organizer Compensation Policy), the annual budget proposal, IRS Form 990-series and CHAR500 filings, and Forms 1099.

4.6 Removal; Vacancies. Any officer may be removed by the Board with or without cause (N-PCL §714). Vacancies are filled by the Board.

ARTICLE V — COMMITTEES

5.1 Board Committees. The Board, by resolution adopted by a majority of the entire Board, may designate committees of the Board consisting of three or more directors, which may exercise Board authority to the extent provided in the resolution and permitted by N-PCL §712.

5.2 Committees of the Corporation and Advisory Bodies. The Board may establish advisory committees, which may include non-directors, but which have no authority to bind the Corporation.

ARTICLE VI — ORGANIZER COUNCIL; ORGANIZERS; EVENT APPROVAL

6.1 Organizer Council. There shall be an Organizer Council, an advisory body of the Corporation. The Organizer Council has no vote on Board or Member matters, cannot bind the Corporation, and its members are not members, directors or officers of the Corporation by virtue of Council membership.

6.2 Eligibility. Any 'Active Organizer' may join the Council. An Active Organizer is an individual who (a) has completed onboarding under Section 6.5, (b) has hosted or co-hosted at least [three] Corporation events in the preceding [six] months, (c) has signed the Organizer Agreement and Code of Conduct, and (d) is not suspended. Status is confirmed by the President or Events Coordinator, whose decision may be appealed to the Board.

6.3 Role. The Council (a) advises the Board on programming, reading lists, event formats, venues, community standards and organizer support; (b) may submit written recommendations, which the Board shall consider and respond to at its next regular meeting; (c) elects a Council Convener annually, who may attend Board meetings as a non-voting guest except during executive session; and (d) meets at least quarterly (online meetings permitted). The Board shall invite the Council's input before adopting or materially changing the Organizer Compensation Policy or the event approval process.

6.4 Event Approval. (a) Standard free events (no admission charge, no host payment, no Corporation expense above $[50]) may be scheduled by any Active Organizer on Corporation channels without further approval, subject to the Code of Conduct. (b) A 'Paid Event' is any event that (i) charges an admission or registration fee, (ii) involves a payment to a host or speaker, or (iii) commits Corporation funds above $[50]. Each Paid Event requires advance written approval (email or a shared approval form suffices) by the Events Approver, being the President or an Events Coordinator designated by the Board, provided that the Events Approver may not approve an event in which he or she (or a relative) is the host, speaker or payee; such events are approved by another director who is not interested. (c) The request must state the date, host(s), fee (if any), expected costs, and whether host compensation under the Organizer Compensation Policy is requested. (d) The Treasurer shall maintain a log of approvals, which the Board shall review at each regular meeting. (e) Conferences, multi-session courses, or any event with expected costs above $[1,000] require Board approval.

6.5 New Organizers. A person wishing to organize events shall: (a) submit a short application to the Events Coordinator; (b) co-host at least [two] events with an Active Organizer as mentor; (c) review and sign the Organizer Agreement (covering Code of Conduct, safety, brand use, data privacy, and that organizers act as volunteers unless separately engaged as contractors) and, if compensation will be paid, provide a Form W-9; and (d) be approved by the Events Coordinator or President. New organizers may host standard free events after approval; Paid Events require Section 6.4 approval. The Corporation may remove organizer status for violation of the Code of Conduct, with a right to request Board review.

ARTICLE VII — CONFLICTS OF INTEREST; RELATED PARTY TRANSACTIONS

7.1 The Board shall adopt, maintain and oversee a Conflict of Interest Policy complying with N-PCL §715-a. No related party transaction shall be entered into unless approved in accordance with N-PCL §715 and the Policy. Every director shall, before initial election and annually thereafter, complete, sign and submit to the Secretary a written disclosure statement as required by N-PCL §715-a(c).

7.2 No loans shall be made by the Corporation to its directors or officers (N-PCL §716).

ARTICLE VIII — FINANCES AND RECORDS

8.1 Fiscal Year. The fiscal year is the calendar year [unless the Board determines otherwise].

8.2 Budget. The Treasurer shall propose, and the Board shall adopt, an annual budget before the start of each fiscal year, [subject to approval by the Member under Section 2.3(d)(vii)].

8.3 Banking and Signatures. Funds shall be deposited in accounts in the Corporation's name only. Checks, transfers or electronic payments over $[1,000], and any payment to a director, officer or Member (or relative), require approval of two officers, at least one of whom is not the payee. No Corporation funds may be commingled with personal funds, and donations received through any personal account or platform must be remitted to the Corporation within [7] days.

8.4 Contracts. Contracts may be signed by the President or another officer authorized by the Board. No officer may sign a contract on behalf of the Corporation with himself or herself or a related party.

8.5 Books and Records. The Corporation shall keep correct and complete books and records of account, minutes, and a list of the Member and directors, as required by N-PCL §621, and shall make its Form 1023-EZ, determination letter and three most recent Forms 990 available for public inspection as required by Code §6104.

8.6 Annual Report. The Board shall present at the annual meeting of the Member a report complying with N-PCL §519, verified by the President and Treasurer or certified by an independent accountant.

ARTICLE IX — INDEMNIFICATION AND INSURANCE

9.1 The Corporation shall indemnify its directors and officers to the fullest extent permitted by N-PCL §§721-726, and may advance expenses in accordance with those sections. The Corporation may purchase directors' and officers' liability and general liability insurance (N-PCL §726). No indemnification shall be made where prohibited by §721 or that would constitute an excess benefit transaction under Code §4958.

ARTICLE X — WHISTLEBLOWER [OPTIONAL]

10.1 Any director, officer, volunteer or contractor may report in good faith suspected illegal, fraudulent or unethical conduct or violations of Corporation policy to the Chair or to any independent director, without retaliation. [A formal whistleblower policy is required by N-PCL §715-b only for corporations with 20 or more employees and annual revenue over $1 million; adopt voluntarily as good practice.]

ARTICLE XI — AMENDMENTS; DISSOLUTION

11.1 Amendments. These By-laws may be adopted, amended or repealed only by the Member, or by the Board with the written approval of the Member (N-PCL §602). The Board may propose amendments. Any change to provisions required for 501(c)(3) status shall be consistent with the Certificate.

11.2 Dissolution. Upon dissolution, assets shall be distributed as provided in the Certificate, subject to N-PCL Articles 10 and 11 and Attorney General or court approval.

CERTIFIED as the By-laws adopted at the organizational meeting on [date] and approved by the sole Member.

_____

[Director 2], Secretary

Approved by the Sole Member:

_____

Ryan Bohman, Member

CONFLICT OF INTEREST POLICY
NYC Philosophy & Psychology Readers Community, Inc.

Based on the IRS sample policy (Instructions for Form 1023, Appendix A) and N-PCL §§715 and 715-a — adopted by the Board on [date]

Article I — Purpose

The purpose of this Policy is to protect the interests of the Corporation when it is contemplating entering into a transaction or arrangement that might benefit the private interest of a director, officer, key person or the Member, or that might result in an excess benefit transaction under Section 4958 of the Internal Revenue Code (the "Code"); and to comply with N-PCL §§715 and 715-a. This Policy supplements, and does not replace, applicable state and federal law.

Article II — Definitions

1. Interested Person. Any director, officer, key person (N-PCL §102(a)(25)), member of a Board committee, or the Member, who has a direct or indirect Financial Interest or other conflicting interest.

2. Financial Interest. A person has a Financial Interest if the person has, directly or indirectly, through business, investment, or a Relative: (a) an ownership or investment interest in any entity with which the Corporation has a transaction or arrangement; (b) a compensation arrangement with the Corporation or with any entity or individual with which the Corporation has a transaction or arrangement; or (c) a potential ownership or investment interest in, or compensation arrangement with, any entity or individual with which the Corporation is negotiating. Compensation includes direct and indirect remuneration and gifts or favors that are not insubstantial. A Financial Interest is not necessarily a conflict; under Article III, the Board decides whether a conflict exists.

3. Related Party and Related Party Transaction. As defined in N-PCL §102(a) (including any director, officer or key person; any Relative of such persons; and any entity in which such a person has a 35% or greater ownership or beneficial interest or, for partnerships and professional corporations, a direct or indirect ownership interest over 5%), and any transaction, agreement or arrangement in which a Related Party has a financial interest and the Corporation is a participant, except transactions excluded by N-PCL §102(a)(24) (e.g., de minimis transactions, and benefits received as a member of a class of beneficiaries on the same terms as others).

4. Relative. A spouse or domestic partner; ancestors; brothers and sisters (whole or half); children (natural or adopted), grandchildren and great-grandchildren; and spouses or domestic partners of brothers, sisters, children, grandchildren and great-grandchildren.

ATTORNEY NOTE / FLAG: *Counsel should confirm the definitions track the current text of N-PCL §102(a)(23)-(25) (related party, relative, key person) as amended in 2016-2017; the statute text could not be fetched directly during drafting (see Research Notes).*

Article III — Procedures

1. Duty to Disclose. An Interested Person must disclose in good faith the existence and material facts of any Financial Interest or Related Party Transaction to the Board or authorized committee before the matter is considered, and may not attempt to influence improperly the deliberation or voting on the matter (N-PCL §715-a(b)).

2. Recusal. After disclosure, and after answering any questions the Board asks before deliberation begins, the Interested Person shall leave the meeting (or the virtual meeting room) and shall not be present at or participate in the deliberation or vote, and shall not be counted toward the vote (N-PCL §§715(h), 715-a(b)(3)). The Interested Person may not sign, approve, or process payment of the matter on behalf of the Corporation.

3. Determining Whether a Conflict Exists. The remaining disinterested directors shall decide whether a conflict exists.

4. Addressing the Conflict. (a) The Chair (or, if the Chair is interested, a disinterested director) may appoint a disinterested person to investigate alternatives. (b) After exercising due diligence, the disinterested directors shall determine whether the Corporation can obtain, with reasonable effort, a more advantageous transaction or arrangement from a person or entity that would not give rise to a conflict. (c) If not, the disinterested directors shall determine by majority vote whether the transaction is fair, reasonable and in the Corporation's best interest at the time of the determination, and approve or reject it. (d) For a Related Party Transaction in which the Related Party has a substantial financial interest, the Board shall, before approval, consider alternative transactions to the extent available, approve by not less than a majority of the directors present, and contemporaneously document in writing the basis for approval including its consideration of alternatives (N-PCL §715(b)).

5. Rebuttable Presumption Procedures (Code §4958). For any compensation or property transaction with a disqualified person (including the Member, any director or officer, and their family members), the Board shall: (a) have the arrangement approved in advance by disinterested directors; (b) obtain and rely on appropriate comparability data (e.g., rates paid by similar organizations for comparable services); and (c) adequately and concurrently document the basis for its decision before the later of the next Board meeting or 60 days after the final action (Treas. Reg. §53.4958-6).

Article IV — Violations

If the Board has reasonable cause to believe a person has failed to disclose an actual or possible conflict, it shall inform the person and afford an opportunity to explain. If, after hearing the response and further investigation, the Board determines the person has failed to disclose, it shall take appropriate disciplinary and corrective action, which may include removal, rescission of the transaction, and recovery of any excess benefit.

Article V — Records of Proceedings

The minutes shall contain: (a) the names of persons who disclosed or were found to have a Financial Interest or conflict, the nature of the interest, any action taken to determine whether a conflict was

present, and the Board's decision; and (b) the names of persons present for discussions and votes, the content of the discussion including alternatives considered and comparability data, and a record of the vote.

Article VI — Compensation

A voting director who receives compensation, directly or indirectly, from the Corporation for services may not vote on matters pertaining to that director's compensation, and may not vote or be present for deliberations on any compensation policy under which that director may be paid (such as the Organizer Compensation Policy), but may provide information before deliberation begins.

Article VII — Annual Statements

Each director (and each officer, key person and the Member) shall, prior to initial election and annually thereafter, sign the Annual Disclosure Statement in Exhibit A, stating that the person has received, read, understood and agreed to comply with this Policy, and listing, to the best of the person's knowledge, (i) any entity of which the person is an officer, director, trustee, member, owner (as sole proprietor or partner) or employee, and with which the Corporation has a relationship, and (ii) any transaction in which the Corporation is a participant and in which the person might have a conflicting interest (N-PCL §715-a(c)). The Secretary shall provide copies to the Chair or, if the Chair is the discloser, to a disinterested director.

Article VIII — Periodic Reviews

The Board shall conduct a periodic review, at least annually, to ensure the Corporation operates in a manner consistent with charitable purposes and does not engage in activities that could jeopardize tax exemption, including whether compensation arrangements (including event-host payments) are reasonable and the result of arm's-length bargaining, and whether the Meetup Group License Agreement and any arrangement with an Interested Person's business conforms to this Policy, furthers charitable purposes and does not result in inurement, impermissible private benefit or an excess benefit transaction. Outside advisors may be used, but their use does not relieve the Board of its responsibility.

Article IX — Oversight

This Policy is overseen by the Board [or, once the Corporation has one, by a committee of independent directors]. Only independent directors may serve on any committee overseeing it, to the extent required by N-PCL §715-a.

Schedule 1 — Standing Disclosures of Ryan Bohman (Member, Director, Chair, [President])

The following known interests are disclosed at adoption and shall be updated annually and whenever they change:

1. Private psychotherapy practice. Ryan Bohman operates a for-profit therapy practice, [name / form of entity]. Agreed safeguards: (a) no promotion, advertising, or solicitation for the practice at Corporation events, on Corporation channels, websites, mailing lists or the licensed Meetup group; (b) no use of Corporation participant, donor or mailing-list data for the practice; (c) Corporation events are educational and are not therapy, and organizers will not offer clinical services; (d) any referral by a participant who independently seeks out the practice must not be the result of Corporation solicitation; (e) no transaction between the Corporation and the practice without prior approval under Article III.
2. Possible future LLC. Ryan Bohman may form a limited liability company [purpose: e.g., consulting, courses, publishing, events]. He will disclose its formation, purpose and any overlap with the Corporation's programs before it begins business; any transaction, shared resource, or competing program will be reviewed under Article III and N-PCL §715 (an entity he owns 35% or more of is a Related Party).
3. Personal ownership of the Meetup group. Ryan Bohman personally holds the organizer account for the Meetup group 'NYC Reading Philosophy & Psychology' (meetup.com/reading-philosophy) and related brand assets, licensed to the Corporation under the Meetup Group License Agreement, which is a Related Party Transaction to be approved by the disinterested directors under Article III, Section 4(d).
4. Event-host compensation. Ryan Bohman may host events and be eligible for payment under the Organizer Compensation Policy. He will recuse from adoption and review of that policy and from approval of any payment to himself.
5. Sole Member status. As sole Member he elects and removes directors; directors' independence from him should be considered in all related party decisions.
6. [Domain nycpprc.org, social media accounts, and any other assets currently held personally: list and state whether being transferred to the Corporation or licensed.]

Exhibit A — Annual Conflict of Interest Disclosure Statement

Name: _____ Position(s): _____ Year: _____

7. I have received, read and understand the Conflict of Interest Policy and agree to comply with it. I understand the Corporation is charitable and, to maintain its federal tax exemption, must engage primarily in activities that accomplish one or more of its tax-exempt purposes.
8. Entities with which the Corporation has a relationship and in which I am an officer, director, trustee, member, owner (sole proprietor or partner) or employee:
   _____
9. Transactions or arrangements in which the Corporation is or may be a participant and in which I (or a Relative or an entity I own 35%+ of) might have a conflicting interest:
   _____
10. Compensation, payments or reimbursements I expect to receive from the Corporation this year (other than expense reimbursement): _____
11. Am I an 'independent director' under N-PCL §102(a)(21) (not employed by the Corporation in the last 3 years, no relative employed as a key person, no more than $10,000 in compensation received from the Corporation in any of the last three years, and no other disqualifying relationship)? [ ] Yes [ ] No

ATTORNEY NOTE / FLAG: *Confirm the current §102(a)(21) dollar thresholds with counsel; the $10,000 figure reflects the statute as amended in 2016 but should be verified.*

Signature: _____ Date: _____

ORGANIZER (EVENT HOST) COMPENSATION POLICY
NYC Philosophy & Psychology Readers Community, Inc.

Adopted by the disinterested directors on [date]; Ryan Bohman recused

1. Purpose

The Corporation's events depend on volunteer and contract organizers who select texts, prepare discussion questions, secure venues and facilitate discussions. This Policy allows the Corporation to pay reasonable compensation to event hosts for services actually rendered, in a manner that is consistent with Section 501(c)(3), avoids inurement and excess benefit transactions (Code §4958), and complies with N-PCL §715 for any host who is a Related Party.

2. Eligibility

A host is eligible for compensation for an event only if: (a) the host is an approved organizer under By-laws §6.5; (b) the event was approved in advance as a Paid Event under By-laws §6.4 with host compensation requested; (c) the host has signed the Independent Contractor/Organizer Agreement and submitted a Form W-9 before payment; and (d) the event actually took place and the host performed the services (preparation, hosting and post-event reporting).

3. Amount; Cap; Funding Source

3.1 Cap. Compensation is capped at $150 per event, regardless of the number of hosts (co-hosts share the $150 as they agree in writing). The cap reflects approximately four (4) hours of preparation and hosting (about $37.50 per hour). [The Board relied on the following comparability data: _____ (e.g., facilitator/discussion-leader rates paid by NYC libraries, adult-education programs, or similar nonprofits). Attach to minutes.]

3.2 Measure. For each approved event, the host's compensation equals the lesser of (a) $150 or (b) the 'Attributed Donations' for that event, net of payment-processing fees. 'Attributed Donations' are unrestricted donations to the Corporation that the Treasurer can reasonably identify as made in connection with that event (for example, through an event-specific donation link or QR code, or a cash count verified by two people), received within [7] days after the event.

3.3 No Top-Up. If Attributed Donations are below $150, the host receives only the Attributed Donations amount; the Corporation does not supplement from general funds. [ALTERNATIVE (recommended by drafter for tax-risk reduction): the Board may instead approve a flat fee per event up to $150 paid from general funds within the approved budget, unrelated to that event's donations.]

3.4 Excess. Attributed Donations above the host's compensation are general, unrestricted funds of the Corporation.

3.5 Annual Ceiling. No host may receive more than $[____] in aggregate under this Policy in any fiscal year without specific Board approval. Payments to any director, officer or the Member are additionally

limited to $[____] per year [so that the Board can evaluate independence (N-PCL §102(a)(21)) and the Form 1023-EZ gross receipts projection].

4. Donations Belong to the Corporation

4.1 All donations are gifts to the Corporation, under the Corporation's full control and discretion. Donations are not payments to or gifts for any individual host, and donors may not earmark a gift for a particular individual. Donation solicitations shall say: “Donations support NYCPPRC's free educational programs, including modest host stipends, venues and operating costs.” Hosts may not solicit or accept donations, tips or Venmo/cash payments personally; all funds go directly to the Corporation's accounts or platforms.

4.2 Events remain free; any 'suggested donation' must be genuinely voluntary and attendance may not be conditioned on it. If an admission fee is charged, it is a payment for admission, not a charitable contribution, and receipts must say so (Code §§170(f)(8), 6115).

5. Payment Mechanics

The Treasurer calculates Attributed Donations and compensation within [14] days after the event, records the calculation in the event log, and pays by bank transfer or check from the Corporation's account. Two-person approval (By-laws §8.3) applies to any payment to a director, officer or the Member. Payments are reported on Form 1099-NEC where required (for payments made in 2026, the reporting threshold is $2,000 per payee per calendar year, adjusted for inflation thereafter; backup-withholding rules apply regardless).

6. Independent Contractor Status

Hosts are engaged as independent contractors (Form 1099), not employees: they control how they prepare and facilitate, choose which events to propose, use their own materials and devices, and are paid per engagement. Hosts are not entitled to benefits, are responsible for their own taxes, and are not authorized to bind the Corporation.

ATTORNEY NOTE / FLAG: *Worker classification is fact-specific under IRS common-law rules and New York unemployment-insurance and wage law tests, which can be stricter than the IRS test. A host who works regularly on a schedule set by the Corporation and is integral to its core program could be found to be an employee. Revisit if any host is paid frequently.*

7. Related Party Hosts; Recusal

7.1 Ryan Bohman (and any other director, officer, key person, the Member or their Relatives) is a Related Party. The disinterested directors adopted this Policy under N-PCL §715 and the Conflict of Interest Policy, found it fair, reasonable and in the Corporation's best interest, considered alternatives (all-volunteer hosting; flat-fee stipends; paid staff), and documented the basis in the minutes.

7.2 Ryan Bohman shall not participate in deliberation or vote on this Policy or any amendment, nor approve, calculate, sign or process any payment to himself. Each payment to a Related Party host shall be approved by a disinterested officer or director before payment and reported to the Board at its next meeting.

8. Review

The Board (Related Parties recused) shall review this Policy annually, including the cap, comparability data, total payments by host, and the effect on Form 1023-EZ/990 thresholds, after inviting Organizer Council input.

ATTORNEY NOTE / FLAG: *KEY RISK: Tying pay to the donations an individual generates is a revenue-based ('contingent') compensation arrangement. The IRS evaluates these under all facts and circumstances; percentage-of-receipts pay to insiders has been held to be inurement (People of God Community v. Commissioner, 75 T.C. 127 (1980)), while capped, arm's-length incentive pay has been accepted (Rev. Rul. 69-383). Treas. Reg. §53.4958-4(a)(4) reserves revenue-sharing rules but the IRS can treat such transactions as excess benefits. The $150 cap, 'lesser of' formula, Corporation control of funds, disinterested approval, and comparability data mitigate risk, but a flat stipend from general funds is the lower-risk alternative. Also: because all donations count as gross receipts, ~5 events/week could push gross receipts toward the $50,000 Form 1023-EZ ceiling; project this before attesting eligibility.*

MEETUP GROUP AND BRAND LICENSE AGREEMENT

between Ryan Bohman (Licensor) and NYC Philosophy & Psychology Readers Community, Inc. (Licensee)

This Meetup Group and Brand License Agreement (the "Agreement") is entered into as of [date] (the "Effective Date") between Ryan Bohman, an individual residing in New York ("Licensor"), and NYC Philosophy & Psychology Readers Community, Inc., a New York not-for-profit charitable corporation (the "Corporation" or "Licensee").

Recitals

A. Since November 2019 Licensor has founded and organized the Meetup group 'NYC Reading Philosophy & Psychology' at meetup.com/reading-philosophy (the "Group"), which has approximately 6,700 members and hosts about five free reading-and-discussion events per week, online and in person in New York City.

B. The Corporation was formed to advance public education in philosophy and psychology and wishes to use the Group and related brand to carry out its charitable purposes. Licensor is the sole Member, a director and Chair of the Corporation, and therefore a Related Party under N-PCL §715 and a disqualified person under Code §4958.

C. The Corporation's directors other than Licensor (the "Disinterested Directors") have reviewed this Agreement, considered alternatives, and determined that it is fair, reasonable and in the Corporation's best interest, as documented in the minutes of [date].

1. Licensed Property

"Licensed Property" means (a) the right to use, operate events through, and announce events on the Group, including organizer and co-organizer access as provided in Section 3; (b) the names 'NYC Reading Philosophy & Psychology', 'Reading Philosophy', and related names, logos and trade dress identified in Schedule A (the "Marks"); and (c) [other items listed in Schedule A]. Licensed Property excludes Licensor's psychotherapy practice and any assets listed in Schedule B as already owned by or transferred to the Corporation.

2. Grant

Licensor grants the Corporation a non-exclusive, non-transferable (except to a successor 501(c)(3) by merger with Licensor's consent), revocable (only as provided in Section 8), royalty-free license to use the Licensed Property, worldwide and online, solely in furtherance of the Corporation's charitable and educational purposes. No fee, royalty, or revenue share is payable by the Corporation.

ATTORNEY NOTE / FLAG: *Royalty-free terms benefit the Corporation, which supports approval under N-PCL §715. The remaining concern runs the other way: the Corporation will build goodwill, audience and donor relationships on an asset Ryan owns personally and can revoke. That can confer private benefit on Ryan and leaves the charity without a key program asset. Consider (i) a right of first refusal or option for the Corporation to receive the Group (if Meetup permits), (ii) a succession designation (Section 9), and/or (iii) a direct transfer of the Group and Marks to the Corporation.*

3. Operation of the Group

3.1 Licensor will remain the Meetup 'organizer' of record and will grant co-organizer, assistant-organizer or event-organizer roles to individuals the Corporation designates in writing, and will not unreasonably remove them. 3.2 Events listed on the Group that are Corporation events shall identify the Corporation as the sponsor (e.g., 'Presented by NYCPPRC, a nonprofit'). 3.3 Meetup subscription fees: [Licensor pays] / [the Corporation reimburses Licensor's actual Meetup subscription cost, without markup, on receipts, as approved by the Disinterested Directors]. 3.4 Both parties shall comply with Meetup's Terms of Service and policies; nothing in this Agreement requires either party to transfer, sell, or export Meetup member data or accounts in violation of those terms.

ATTORNEY NOTE / FLAG: *Check Meetup's current Terms of Service/organizer policies for (a) whether a group may be operated on behalf of an organization, (b) transfer of organizer role, and (c) restrictions on exporting member data. The 'Corporation keeps its own data' clause below is limited to data the Corporation collects directly.*

4. Quality Control

The Corporation shall use the Marks in a manner consistent with Licensor's reasonable brand guidelines (Schedule A) and the Corporation's Code of Conduct. Licensor may review uses of the Marks. All goodwill from use of the Marks inures to Licensor, except goodwill in the Corporation's own name, 'NYCPPRC', and the Corporation's separate marks, which belong to the Corporation.

5. Corporation Property and Data

As between the parties, the Corporation exclusively owns, during and after the term: (a) its corporate name and the 'NYCPPRC' name; (b) [the domain nycpprc.org and website]; (c) its own email and mailing lists, donor and volunteer records, sign-up lists collected through Corporation forms (with appropriate consent), bank and payment accounts; (d) social media and other accounts opened in the Corporation's name; and (e) content, recordings, reading guides and materials created by or for the Corporation (subject to authors' agreements). Licensor shall not access or use Corporation data for any non-Corporation purpose, including his therapy practice or any LLC he forms.

6. Licensor Good-Faith Covenants

During the term and for [twelve (12)] months after any termination by Licensor without cause, Licensor shall: (a) not use the Group or Marks to solicit charitable donations for any organization other than the Corporation; (b) not use the Group or Marks to operate a substantially similar free philosophy/psychology reading-group program in New York City that competes with the Corporation's programs, [unless the Corporation's Board consents]; (c) not disparage the Corporation or interfere with its relationships with organizers, venues or donors; (d) post, if the license terminates, a transition notice on the Group for at least [90] days directing members to the Corporation's own channels; and (e) not use the Group, the Marks or Corporation channels to promote his therapy practice or any for-profit venture.

ATTORNEY NOTE / FLAG: *Covenant (b) is a non-compete given by an individual in a commercial/charitable license rather than employment; enforceability turns on reasonableness of scope, duration and geography under New York law, and there have been recent legislative efforts in New York to restrict non-competes. Counsel should consider whether a narrower 'good faith / non-solicitation / non-interference' covenant is preferable.*

7. Term

This Agreement begins on the Effective Date and continues until terminated under Section 8.

8. Termination

8.1 Either party may terminate for convenience on [sixty (60)] days' written notice. 8.2 Either party may terminate on [fifteen (15)] days' notice for material breach not cured within that period. 8.3 The license terminates automatically if the Corporation dissolves or finally loses 501(c)(3) status. 8.4 On termination: the Corporation will stop using the Marks within [60] days (it may continue to use its own name 'NYCPPRC'); Licensor will remove Corporation-designated organizers' roles only after the transition period; and Sections 5, 6, 10 and 11 survive.

9. Succession and Right of First Offer

9.1 If Licensor intends to sell, transfer or close the Group, or to cease organizing it, Licensor shall first offer to transfer the Group and Marks to the Corporation, to the extent permitted by Meetup, for [no consideration] / [fair market value determined independently], and the Corporation shall have [30] days to accept. 9.2 Licensor designates the Corporation (acting through an officer it names) as the person to whom the Group should be transferred upon Licensor's death or incapacity, to the extent Meetup and law permit, and shall keep a written instruction to that effect.

10. Representations; Disclaimers; Indemnity

Licensor represents that he is the organizer of record of the Group and, to his knowledge, the Marks do not infringe third-party rights. THE LICENSED PROPERTY IS PROVIDED 'AS IS.' Each party shall indemnify the other against third-party claims arising from its own gross negligence or willful misconduct or its breach of this Agreement. The Corporation shall maintain general liability insurance for its events, [naming Licensor as additional insured if reasonably available].

11. Related Party Approval; Arm's-Length Terms

The parties acknowledge that this Agreement is a Related Party Transaction. It was negotiated and approved on behalf of the Corporation solely by the Disinterested Directors, without Licensor's participation in deliberation or vote, in accordance with N-PCL §715(a), (b) and (h) and the Conflict of Interest Policy; and that any amendment, renewal, payment to Licensor, or waiver by the Corporation requires the same approval. Licensor receives no compensation under this Agreement.

12. General

Governing law: New York. Venue: courts located in New York County. Entire agreement; amendments only in writing approved under Section 11. Notices by email to the addresses below with confirmation. No partnership or agency is created. Counterparts and electronic signatures permitted.

LICENSOR:

_____

Ryan Bohman Date: _____ Email: [ ]

LICENSEE: NYC Philosophy & Psychology Readers Community, Inc.

By: _____

Name: [Director 2] Title: Secretary (disinterested officer) Date: _____

Schedule A — Licensed Property and Brand Guidelines

- Meetup group: 'NYC Reading Philosophy & Psychology' — https://www.meetup.com/reading-philosophy/
- Marks: [list names, logos, taglines]
- Other: [e.g., Discord/Slack server, YouTube channel, email list, if personally held and not transferred]
- Brand guidelines: [link or attach]

Schedule B — Assets Owned by or Transferred to the Corporation

- [nycpprc.org domain — transfer to Corporation registrar account by (date)]
- [Any pre-incorporation donation balances held by Ryan Bohman — transferred to Corporation bank account on (date), amount $____]
- [Social accounts opened in the Corporation's name]

MINUTES OF THE ORGANIZATIONAL MEETING of the Incorporator, the Sole Member and the Initial Board of Directors NYC Philosophy & Psychology Readers Community, Inc.

Held [date] at [time] ET [in person at ____ / by video conference], pursuant to N-PCL §405

Present: Ryan Bohman (Incorporator, Sole Member, Director); [Director 2] (Director); [Director 3] (Director). Also present: [none / guests]. All participants could hear and communicate with each other simultaneously (N-PCL §708(c)).

Ryan Bohman called the meeting to order and acted as chair; [Director 2] acted as secretary of the meeting. All directors waived notice in writing (Waiver attached as Exhibit 1). A quorum of the Board was present.

1. Certificate of Incorporation

The chair presented the Certificate of Incorporation filed by the New York Department of State on [filing date] (DOS ID [____]) and the filing receipt. RESOLVED, that the Certificate and filing receipt be inserted in the minute book, and that the Secretary send a certified copy of the Certificate to the Commissioner of Education within 30 business days after the Department of State's confirmation of filing, as required by N-PCL §404(d).

2. Incorporator Actions; Admission of Member

The Incorporator, acting under N-PCL §405, adopted the By-laws presented (Exhibit 2) and admitted Ryan Bohman as the sole Member, and confirmed the initial directors named in the Certificate. The Incorporator's powers thereupon ceased.

3. Ratification by the Sole Member

The Member, by written consent (Exhibit 3), approved the By-laws, fixed the number of directors at three (3), confirmed the initial directors and their initial terms (Ryan Bohman and [Director 2]: two years; [Director 3]: one year), and [approved the initial budget].

4. Election of Officers

RESOLVED, that the following are elected to serve until the next annual meeting of the Board and until their successors are elected: Chair — Ryan Bohman; President — [Ryan Bohman]; Secretary — [Director 2]; Treasurer — [Director 3]. (The offices of President and Secretary are held by different persons as required by N-PCL §713(b).)

5. Conflict of Interest Policy; Disclosure Statements

RESOLVED, that the Conflict of Interest Policy (Exhibit 4) is adopted. Each director submitted a signed Annual Disclosure Statement before acting further, as required by N-PCL §715-a(c), and Ryan Bohman read into the record the standing disclosures in Schedule 1 of the Policy (therapy practice; possible future LLC; personal ownership of the Meetup group; potential host compensation; sole-Member status).

6. Organizer Compensation Policy (Ryan Bohman recused)

Ryan Bohman described the proposed policy and answered questions, then left the meeting at [time] and did not participate in deliberation or vote. [Director 2] presided. The disinterested directors reviewed comparability data [describe: e.g., $__/hour facilitator rates at ____], considered alternatives (all-volunteer hosting; flat stipends from general funds; paid staff), and the risk factors described in the policy note. RESOLVED, by vote of [2-0] of the disinterested directors present, that the Organizer Compensation Policy (Exhibit 5) is fair, reasonable and in the Corporation's best interest and is adopted; and that payments to any Related Party host require prior approval by a disinterested officer. Basis for the decision: [summarize]. This documentation is made contemporaneously for purposes of N-PCL §715(b) and Treas. Reg. §53.4958-6.

7. Meetup Group License Agreement (Ryan Bohman recused)

While Ryan Bohman remained absent, the disinterested directors reviewed the Meetup Group and Brand License Agreement (Exhibit 6). They considered alternatives, including (a) building a new Meetup group owned by the Corporation, (b) an outright transfer of the Group to the Corporation, and (c) no affiliation, and noted that the license is royalty-free, revocable on notice, and that the Corporation retains its own data and accounts on termination. RESOLVED, by vote of [2-0], that the License Agreement is fair, reasonable and in the Corporation's best interest; that the Secretary is authorized to execute it on behalf of the Corporation; and that [reimbursement of Meetup subscription costs at actual cost / no reimbursement] is approved. Ryan Bohman then rejoined the meeting at [time].

8. Organizer Council and Event Approval

RESOLVED, that the Organizer Council is constituted under Article VI of the By-laws; that [name] is designated Events Coordinator and Events Approver for Paid Events; that [Director 2 or 3] approves Paid Events hosted by the Events Approver; and that the Organizer Agreement and Code of Conduct (to be presented) shall be used for onboarding new organizers.

9. Fiscal Year

RESOLVED, that the fiscal year of the Corporation is the calendar year.

10. Employer Identification Number

RESOLVED, that the President is authorized to apply online for a federal Employer Identification Number (IRS Form SS-4 online application), with Ryan Bohman as responsible party.

11. Bank Account

RESOLVED, that the Treasurer and President are authorized to open a checking account in the Corporation's name at [bank]; that authorized signatories are [President, Treasurer]; that payments over $[1,000], and any payment to a director, officer or the Member, require approval of two officers, one of whom is not the payee; and that the bank's standard form resolutions are adopted and the Secretary may certify them.

12. Federal Tax Exemption (Form 1023-EZ)

The Treasurer presented the Form 1023-EZ Eligibility Worksheet with projected gross receipts for [2026], [2027] and [2028] of $[__], $[__], $[__] and total assets of $[__]. RESOLVED, that, provided the

worksheet confirms eligibility (all answers 'No'), the President is authorized to complete and file Form 1023-EZ on Pay.gov, pay the $275 user fee, request public charity classification under Code §§509(a)(1) and 170(b)(1)(A)(vi) [or 509(a)(2)], and sign under penalties of perjury; and if the Corporation is not eligible, to file Form 1023 ($600 user fee) instead, in each case within 27 months after the end of the month of incorporation.

13. New York Charities Bureau Registration (CHAR410)

RESOLVED, that the President and Treasurer are authorized to register the Corporation with the Charities Bureau of the New York State Attorney General through the online Charities Registration portal (CHAR410), before soliciting any contributions in New York, paying the $25 Article 7-A fee if registering to solicit or claiming any available exemption, and to file annual CHAR500 reports.

14. State Tax Exemptions

RESOLVED, that after receipt of the IRS determination letter, the Treasurer is authorized to apply for a New York State sales tax Exempt Organization Certificate (Form ST-119.2) and, if advised, Form CT-247 for exemption from corporation franchise taxes.

15. Organizational Expenses; Transfer of Pre-Incorporation Funds and Assets

RESOLVED (Ryan Bohman abstaining and leaving for deliberation on reimbursement to himself), that the Corporation reimburse Ryan Bohman $[__] for documented organizational expenses (filing fees, etc.), and accept the transfer of [pre-incorporation donation balances of $__ / the nycpprc.org domain / other assets in Schedule B to the License Agreement].

16. Insurance and Policies

RESOLVED, that the officers obtain quotes for general liability and directors' and officers' insurance; and that a document retention policy [and voluntary whistleblower policy] be presented at the next meeting.

17. General Authority

RESOLVED, that the officers are authorized to take all actions and sign all documents necessary to carry out these resolutions, and all prior actions consistent with them are ratified, except that no related party transaction is ratified by this resolution.

There being no further business, the meeting was adjourned at [time].

_____

[Director 2], Secretary of the Meeting

Exhibits: 1 Waiver of Notice; 2 By-laws; 3 Written Consent of Sole Member; 4 Conflict of Interest Policy and disclosure statements; 5 Organizer Compensation Policy; 6 Meetup Group License Agreement; 7 Form 1023-EZ Eligibility Worksheet.

Exhibit 1 — Waiver of Notice of Organizational Meeting

The undersigned, being the incorporator and all of the directors of NYC Philosophy & Psychology Readers Community, Inc., waive notice of the organizational meeting held on [date] and consent to the transaction of all business at it.

_____ Ryan Bohman _____ [Director 2] _____ [Director 3]

Exhibit 3 — Written Consent of the Sole Member (N-PCL §614)

The undersigned, being the sole Member, consents to: (1) approval of the By-laws adopted on [date]; (2) fixing the number of directors at three; (3) election of Ryan Bohman, [Director 2] and [Director 3] as directors for the terms stated in the minutes; [(4) approval of the initial budget attached]; and (5) designation of the following successor Member under By-laws §2.2: [name / 'none at this time'].

_____

Ryan Bohman, Sole Member Date: _____

FILING CHECKLIST, FEES AND DIY ONLINE FILING PLAN
NYC Philosophy & Psychology Readers Community, Inc.

Prepared October 11, 2026 — verify fees and procedures on the official sites before each filing

A. Filing approach (user preference)

Ryan Bohman intends to file everything himself, online wherever available: (1) NY Department of State certificate of incorporation; (2) IRS EIN online; (3) Form 1023-EZ on Pay.gov; (4) NY Charities Bureau CHAR410 through the Attorney General's online Charities Registration portal. A one-time lawyer review is recommended for ONLY two documents — the By-laws and the Meetup Group License Agreement — before signing (see Section D).

ATTORNEY NOTE / FLAG: *Online availability caveats: (a) The DOS not-for-profit certificate page (checked Oct. 11, 2026) directs filers to submit the Certificate of Incorporation by mail or by EMAIL to dosCorpfiling@dos.ny.gov with a completed Credit Card/Debit Card Authorization form; it does not list the e-Corp online system for N-PCL certificates. Email submission is the practical 'online' route; check the e-Corp system at filing time in case N-PCL forms have been added. (b) NY sales tax Form ST-119.2 and franchise tax Form CT-247 are paper/fax filings, not online. (c) EIN, Pay.gov 1023-EZ and CHAR410 are fully online.*

B. Step-by-step checklist

#	Step	How / where (DIY)	Fee	Timing / notes
1	Name availability check	Written inquiry to DOS Division of Corporations (mail/email); optional Application for Reservation of Name (N-PCL §303). Also search USPTO, Meetup, domain.	$5 per name inquiry (optional); $10 reservation (optional; 60 days, 2 extensions)	DOS entity database search is NOT an availability ruling. Final name approval only on filing.
2	Finalize & sign Certificate of Incorporation	Doc 01; incorporator Ryan Bohman signs; three initial directors' names/addresses needed ([Director 2], [Director 3]).	—	Lawyer review not planned for this doc; it follows DOS Form 1511-f plus IRS clauses.
3	File Certificate with NY DOS	Email PDF to dosCorpfiling@dos.ny.gov with Credit Card Authorization form (or mail to One Commerce Plaza, 99 Washington Ave, Albany NY 12231).	$75 filing; +$10 certified copy (recommended); expedite optional $25 (24h) / $75 (same day) / $150 (2h)	Corporate existence begins on DOS filing date. Order a certified copy (needed for Step 4).
4	Send certified copy to NYSED	Mail certified copy of filed Certificate to the Commissioner of Education (NYSED	$0 (+ postage)	Within 30 business days after DOS confirms filing (corporation has

		Office of Counsel) — N-PCL §404(d).		educational purposes).
5	Organizational meeting	Doc 06 minutes; adopt By-laws (Doc 02), COI policy (Doc 03), Compensation Policy (Doc 04), approve License (Doc 05) with Ryan recused; collect disclosure statements; Member written consent.	$0	Promptly after filing. Sign License only after lawyer review.
6	EIN	IRS.gov/EIN online application (Form SS-4 online). Responsible party: Ryan Bohman.	$0	Same day. Use exact legal name from filing receipt.
7	Bank account	Open in Corporation's name with EIN, filed certificate, minutes/bank resolution.	Bank-dependent	Move any pre-incorporation donation balances; stop collecting into personal accounts.
8	Form 1023-EZ eligibility worksheet	Complete Section C below; keep with records (not submitted).	$0	If any 'Yes', file full Form 1023 instead ($600 user fee).
9	File Form 1023-EZ	Pay.gov (create account; search '1023-EZ'). Have: EIN, legal name, address, formation date, NTEE code (suggest A70 Humanities or B90 Educational Services), officer/director names, mission, attestation of purpose and dissolution clauses.	$275	File within 27 months after end of formation month for exemption retroactive to formation. IRS typically decides in weeks to a few months.
10	NY Charities Bureau registration (CHAR410)	AG online Charities Registration portal. Needs EIN, certificate, by-laws; two e-signers: President (or authorized officer) AND Treasurer/CFO (use different people).	$25 if registering to solicit under Exec. Law Art. 7-A; $0 if not soliciting / claiming exemption	Before soliciting any NY contributions (Exec. Law §172); EPTL registration within 6 months of receiving charitable property (EPTL §8-1.4). Event donations = solicitation, so register before or at launch.
11	NY franchise tax exemption (CT-247)	Paper/fax form to NYS Tax Dept, Corporation Tax Account Resolution,	$0	After IRS determination letter. Tax Dept form says nonprofits 'must file

		with IRS determination letter, certificate and by-laws.		Form CT-247 to apply for exemption.'
12	NY sales tax exemption (ST-119.2)	Paper form mailed to Sales Tax Exempt Organizations Unit, W A Harriman Campus, Albany NY 12227, with IRS determination letter.	$0	After IRS determination letter. Relevant if buying venue supplies, printing, food, etc. Receive ST-119 certificate and ST-119.1 purchase certificates.
13	Insurance	General liability (in-person events) and D&O quotes.	Varies	Venues often require certificates of insurance.

Annual / recurring compliance

Filing	Who / where	Due	Fee
IRS Form 990-N (e-Postcard)	IRS online, if gross receipts normally ≤ $50,000 (else 990-EZ/990)	15th day of 5th month after FYE (May 15 for calendar year)	$0
CHAR500 annual filing	NY AG Charities Bureau online	4½ months after FYE (May 15), extensions available	Art. 7-A: $25 unless exempt (e.g., contributions ≤ $25,000 and no professional fundraiser); EPTL: $25 if net worth < $50,000 unless exempt. CPA review > $250k revenue; audit > $1M.
Forms 1099-NEC to hosts	IRS (FIRE/IRIS) and recipients	Jan 31	$0; 2026 threshold $2,000 per payee
Annual COI disclosure statements	All directors/officers/Member → Secretary	Annually (N-PCL §715-a(c))	—
Annual report to Member	Board → Member at annual meeting (N-PCL §519)	Annual meeting	—
Annual Member meeting / director elections	Member written consent OK (N-PCL §614)	Annually	—
Public inspection	Form 1023-EZ, determination letter, 3 most recent 990s (Code §6104)	On request	—
NY DOS biennial statement	Not required for N-PCL corporations (applies to business corps/LLCs)	—	—
Update DOS address for process	Certificate of Change, if address changes	As needed	$20

Fee summary (core DIY path)

Item	Amount
DOS certificate of incorporation	$75
Certified copy (for NYSED §404(d) filing)	$10
Name availability inquiry (optional) / reservation	$5 / $10

(optional)	
EIN	$0
Form 1023-EZ user fee (Pay.gov)	$275 (full Form 1023: $600)
CHAR410 registration	$25 if registering to solicit; else $0
CT-247 / ST-119.2	$0 / $0
Total government fees (typical)	≈ $385–$395 (+ optional expedite/name fees)
Optional lawyer review via Lawyers Alliance for New York (if accepted)	$800 new-client fee for incorporation/tax-exemption matters ($475 standard new-client fee); pro bono work then generally no added charge

C. Form 1023-EZ Eligibility Worksheet (pre-filled draft)

From the IRS Instructions for Form 1023-EZ (Rev. January 2025). All answers must be 'No' to use Form 1023-EZ. Retain this worksheet; do not submit it.

Q	Question (summary)	Draft answer	Comment / flag
1	Projected annual gross receipts > $50,000 in any of next 3 years?	[No — VERIFY]	FLAG. Gross receipts = ALL donations, ticket fees, grants, before expenses. ~5 events/week (~260/yr): if average donations were ~$190/event, receipts would be ~$50k. Build a realistic 3-year projection (current year + next 2).
2	Gross receipts > $50,000 in any of past 3 years?	No (new corporation)	Pre-incorporation donations collected by Ryan personally are not the corporation's receipts, but disclose/transfer properly.
3	Total assets FMV > $250,000?	No	
4–5	Formed under foreign law / foreign mailing address?	No	
6	Successor to or controlled by a 501(p)-suspended entity?	No	
7	Organized as other than corporation/association/trust (e.g., LLC)?	No	NY not-for-profit corporation.
8	Formed as a for-profit entity?	No	
9	Successor to a for-profit entity?	[No — CONFIRM]	FLAG. 'Successor' includes substantially taking over the assets or activities of a for-profit entity. The Meetup group has been run personally by Ryan; if it generated income treated as a sole proprietorship/business (or is held in his therapy practice or an LLC), counsel should confirm the answer. A royalty-free

			license (not a takeover) helps.
10–11	Previously revoked / exempt under another 501(a) section?	No	
12–16	Church; school; hospital/medical research; agricultural research; university-support org?	No	Not a 'school' — no regular faculty/enrolled student body/curriculum as primary function.
17–19	Private operating foundation / supporting org / risk pool?	No	Request public charity status 170(b)(1)(A)(vi) or 509(a)(2).
20–30	Credit counseling; non-public securities ≥ 5%; loss-sharing partnerships; carbon credits; HMO; ACO; donor advised funds; public-safety testing; PF reinstatement items	No	
31–34	Prior denial; prior EZ ineligibility; controlled substances; digital assets	No	

D. Recommended one-time lawyer review (By-laws and License Agreement only)

Scope: a single review of Doc 02 (By-laws) and Doc 05 (Meetup Group License Agreement) before the organizational meeting. Specific questions to ask: (1) Is member approval of the annual budget (reserved power) permissible and advisable? (2) Is a chair tie-breaking vote permissible under N-PCL §708(d)? (3) Is the sole-member succession mechanism workable? (4) Is the interim executive-action clause adequate? (5) Is the license's revocability and lack of a transfer/option right a private-benefit risk; does it comply with Meetup's Terms; is the Ryan non-compete enforceable and appropriate? (6) [Optional, 10 minutes: is the donation-linked host compensation formula acceptable, or should it be a flat stipend?]

Lawyers Alliance for New York (lawyersalliance.org) provides free and low-cost business-law help to NYC nonprofits by matching them with pro bono attorneys, with staff attorneys as co-counsel. Eligibility: nonprofits (or groups seeking nonprofit status) operating in NYC that benefit low-income individuals or communities, reviewed case by case (mission, legal need, ability to pay). Fees as published: $800 new-client fee for incorporation/tax-exemption matters (includes 'Getting Organized' publication and a 'Becoming a Nonprofit' workshop), $475 standard new-client fee, due on acceptance; staff-only work typically $250–$350/hour. Apply via the online Request for Legal Assistance form or email LAFSubmit@lawyersalliance.org; 171 Madison Avenue, 9th Floor, New York, NY 10016; (212) 219-1800. Its Resource Call line (ResourceCall@lawyersalliance.org, ext. 224) gives general information to non-clients.

ATTORNEY NOTE / FLAG: *NYCPPRC's free public programs serve the general public; to fit Lawyers Alliance's low-income-community criterion, describe free access, any outreach to low-income New Yorkers, and venues (e.g., libraries). If not accepted, alternatives: NYC Bar Legal Referral Service or a*

nonprofit attorney on a flat-fee document review. If the review happens before filing, consider letting the reviewer glance at the Certificate's reserved-powers clause, which mirrors the By-laws.

E. Placeholders to fill before filing

- Final corporate name (after availability check); county of office; DOS process address.
- [Director 2] and [Director 3] full names and addresses (likely Zita and Brent); officer slate.
- Successor Member designation; budget reserved power yes/no; tie-break alternative A or B; board size cap; term-limit choice.
- Dollar thresholds: interim action caps, two-signature threshold, Paid Event expense trigger, annual host-pay ceilings.
- Comparability data for the $150 host cap; Events Approver designation.
- Therapy practice name/entity; future LLC details; Meetup subscription cost treatment; domain/social-account ownership; pre-incorporation funds.
- 3-year gross receipts projection for the 1023-EZ.

RESEARCH NOTES, SOURCES AND RISK FLAGS

NYCPPRC formation documents — research performed October 11, 2026

1. Web sources consulted (verified Oct. 11, 2026)

- NY DOS — Certificate of Incorporation for Domestic Not-for-Profit Corporations (how to file, $75 fee, email submission, name availability $5, corporate indicator rule) — https://dos.ny.gov/certificate-incorporation-domestic-not-profit-corporations-0
- NY DOS — Fee schedules (N-PCL incorporation $75; amendment $30; change $20; reservation $10; dissolution $30) — https://dos.ny.gov/fee-schedules
- NY DOS — Reservation of Name (N-PCL §303; 60 days; $10; expedite $25/$75/$150) — https://dos.ny.gov/reservation-name-domestic-and-foreign-not-profit-corporations
- NY DOS Form 1511-f, Certificate of Incorporation (structure of FIRST–EIGHTH paragraphs) — https://dos.ny.gov/system/files/documents/2023/01/1511-f.pdf
- NY DOS Form 1511 instructions (certified copy $10; name approval not final until filing) — https://dos.ny.gov/system/files/documents/2018/12/1511-inst.pdf
- NY DOS restricted words and phrases list — https://dos.ny.gov/system/files/documents/2018/10/restrictedwordsphrases.pdf
- NY DOS — E-Corp Online Filing System page — https://dos.ny.gov/e-corp-online-filing-system-0
- NY DOS — Biennial statements (business corporations and LLCs only) — https://dos.ny.gov/biennial-statements-business-corporations-and-limited-liability-companies
- N-PCL §402 (certificate contents incl. (2-a) charitable/non-charitable statement and (2-b) no-consent statement) — NYSenate Open Legislation / Justia — https://www.nysenate.gov/legislation/laws/NPC/402 ; https://law.justia.com/codes/new-york/npc/article-4/402/
- N-PCL §715 (related party transactions) — full text retrieved — https://www.nysenate.gov/legislation/laws/NPC/715
- N-PCL §715-a (conflict of interest policy) — summary via search; direct fetch timed out — https://www.nysenate.gov/legislation/laws/NPC/715-A
- N-PCL §713 (officers; §713(f) employee may not be chair) — summary via search — https://codes.findlaw.com/ny/notforprofit-corporation-law/npc-sect-713/
- NY AG Charities Bureau — Procedures for Forming and Changing a NY Not-for-Profit Corporation — https://ag.ny.gov/sites/default/files/publications/Procedures-for-Forming-and-Changing-NFP.pdf
- NY AG — Charities registration (online portal; two signatories) — https://ag.ny.gov/resources/government-organizations/charities-nonprofits-fundraisers/charities-registration
- NY AG — Online Charities Registration user guide — https://ag.ny.gov/sites/default/files/regulatory-documents/online-reg-useguide.pdf
- 13 NYCRR §91.4 (initial registration timing; $25 Art. 7-A fee) — https://www.law.cornell.edu/regulations/new-york/13-NYCRR-91.4
- NY Executive Law §172 (register prior to solicitation; $25 fee) — https://law.justia.com/codes/new-york/exc/article-7-a/172/

- NY AG — CHAR500 annual filing page and instructions — https://ag.ny.gov/resources/government-organizations/charities-nonprofits-fundraisers/charities-annual-filing-char500 ; https://ag.ny.gov/sites/default/files/regulatory-documents/CHAR500_instructions.pdf
- NY AG guidance — audit thresholds (review > $250k; audit > $1M from July 1, 2021) — https://ag.ny.gov/sites/default/files/regulatory-documents/AuditCommittees.pdf
- NYSED Office of Counsel — Commissioner's Consents / Regents' Authorization (§404(d); 30-business-day certified copy; name terms) — https://www.counsel.nysed.gov/consents
- IRS — Instructions for Form 1023-EZ (Rev. Jan. 2025), incl. Eligibility Worksheet Q1–34, 27-month rule, 990-N — https://www.irs.gov/pub/irs-pdf/i1023ez.pdf ; https://www.irs.gov/instructions/i1023ez
- IRS Form 1023-EZ (filed only on Pay.gov) — https://www.irs.gov/pub/irs-pdf/f1023ez.pdf
- Form 1023-EZ user fee $275 (Rev. Proc. 2025-5) — secondary source; confirm on Pay.gov — https://accountably.com/irs-forms/f1023ez/
- IRS — Instructions for Forms 1099-MISC and 1099-NEC (Rev. Dec. 2026): $2,000 threshold for payments after Dec. 31, 2025 — https://www.irs.gov/instructions/i1099mec
- NYS Tax — Sales tax exempt organizations; Form ST-119.2 and instructions (mail only, no fee) — https://www.tax.ny.gov/bus/st/exempt.htm ; https://www.tax.ny.gov/pdf/current_forms/st/st119_2i.pdf
- NYS Tax — Form CT-247 (Rev. 12/25) franchise tax exemption for not-for-profits — https://www.tax.ny.gov/pdf/current_forms/ct/ct247.pdf
- Lawyers Alliance for New York — Becoming a Client (eligibility, $800/$475 fees), Legal Assistance (application, contacts) — https://lawyersalliance.org/becoming-a-client ; https://lawyersalliance.org/legal-assistance

2. Legal authorities relied on (cited in drafts)

- IRS sample Conflict of Interest Policy — Instructions for Form 1023, Appendix A (structure of Doc 03).
- IRC §501(c)(3); Treas. Reg. §1.501(c)(3)-1(b)(4) (dissolution clause), -1(d)(1)(ii) (private benefit); IRS Pub. 557.
- IRC §4958 and Treas. Reg. §§53.4958-3 (disqualified persons), -4(a)(4) (revenue-sharing, reserved), -6 (rebuttable presumption).
- People of God Community v. Commissioner, 75 T.C. 127 (1980) (percentage-of-receipts compensation = inurement); Rev. Rul. 69-383 (capped, arm's-length percentage compensation acceptable).
- Rev. Rul. 62-113 (earmarked gifts for individuals not deductible where charity lacks control); IRC §§170(f)(8) ($250 written acknowledgment) and 6115 (quid pro quo disclosure > $75); §6104 (public inspection); §6033(i) (990-N).
- N-PCL §§102(a)(21) (independent director), 102(a) related party/relative/key person definitions, 201, 202, 301, 303, 404(d), 405, 510-511, 515, 519, 601-603, 614, 621, 701-702, 706-709, 711-716, 715-b, 720-a, 721-726, 802, 903, 1002.
- Education Law §§216, 224; Art. 153 (psychology) — relevant to the 'Psychology' name and the no-clinical-services clause.

3. Legal risks flagged

1. Sole-member control. Lawful under N-PCL (one class with one member is permitted) and not a bar to 501(c)(3) or public-charity status (public support tests look at funding sources, not governance). But Ryan is simultaneously sole member, director, chair and likely president, holds the Meetup group personally, and may be paid as a host — the classic profile the IRS and NY AG examine for inurement and private benefit. Mitigations drafted: recusal everywhere he is interested, disinterested-director approvals with §715(b) documentation, two-signature payments, successor-member clause. Strongly consider adding independent directors to make a majority independent.
2. Reserved powers. Amendments, merger, dissolution and asset sales already need member approval by statute; budget approval is a contractual limit on board management (N-PCL §701) — flagged for counsel.
3. Chair tie-break. N-PCL §708(d) majority-of-present rule; a casting vote may not be valid — two alternatives drafted.
4. Interim executive action. Executive committee needs 3+ directors (§712); drafted as capped officer authority with ratification; related party matters excluded because ratification is only a limited defense (§715(j)).
5. Donation-linked host pay. Revenue-based compensation to insiders is a recognized inurement/excess-benefit risk (People of God; Treas. Reg. §53.4958-4(a)(4)); the cap, lesser-of formula, corporate control of donations and comparability data mitigate it; a flat stipend from general funds is lower risk. Donor-facing: donations must be to the corporation, not earmarked for hosts (Rev. Rul. 62-113).
6. 1023-EZ eligibility. Gross receipts include every donation; five events a week could approach the $50,000 ceiling. Worksheet Q9 (successor to a for-profit) should be confirmed given the group's history under Ryan personally. False attestation risks later revocation.
7. Meetup license. Revocable license of a personally owned asset means the charity builds value it doesn't own (private benefit to Ryan; program-continuity risk). Drafted: right of first offer, succession instruction, corporate ownership of its own data/accounts, transition notice, non-compete/good-faith covenant (enforceability flagged). Check Meetup Terms on organizations and data export.
8. Therapy practice. Private benefit if events or lists funnel clients to the practice; drafted prohibitions plus a no-clinical-services clause in the certificate.
9. Worker classification. 1099 treatment is fact-specific; NY tests can be stricter.
10. Educational purposes. No Education Department consent is needed because the corporation won't run a school/library/museum, but the §404(d) certified-copy notice to NYSED within 30 business days IS required.
11. Pre-incorporation funds/assets held personally should be transferred and documented; stop collecting donations to personal accounts before CHAR410 registration and solicitation.
12. Type A/B/C/D classification: abolished by the Nonprofit Revitalization Act of 2013 (effective July 1, 2014); the current N-PCL requires the certificate to say 'charitable' or 'non-charitable' under §201. The draft uses 'charitable corporation'.

4. Verification caveats

- Direct statute fetches from nysenate.gov, Justia and FindLaw were blocked or timed out for several sections (§§713, 715-a, 708, 709, 706, 712, 102). Their descriptions in the drafts rest on search-result summaries and the drafter's knowledge of the statute as amended through 2017; counsel should

confirm the current text, especially subsection numbering of §102(a) definitions, the §102(a)(21) independent-director dollar thresholds, and §713(b).

- The CHAR500 EPTL exemption threshold ($25,000 gross receipts and assets) and 7-A exemption details are summarized from CHAR500 materials; confirm in the current CHAR500 instructions at filing.
- Fees verified October 11, 2026 on official sites, except the $275 1023-EZ fee (secondary source citing Rev. Proc. 2025-5; Pay.gov shows the current fee at checkout) and the $600 Form 1023 fee (drafter knowledge).
- These are drafts for attorney review, not legal advice.